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Politics - Which bills will Gavin Newsom sign into laws?

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SACRAMENTO >> It's California's most diverse Legislature ever, and one-fourth of lawmakers are new. But some things never change: Legislators wait until the last days of the session to pass a lot of bills.

In recent days, they have sent Gov. Gavin Newsom some significant legislation — to tax guns and ammunition, ban caste discrimination and decriminalize some psychedelic drugs. And before they finished nearly seven months of lawmaking late Thursday, legislators approved many more bills. Of the more than 2,600 introduced, the most in a decade, nearly 220 had been sent to the governor as of Sept. 8. Newsom has already signed some and vetoed a few others.

He has until Oct. 14 to sign or veto the final batch. Last year, he vetoed 169, while signing 997, including some very significant ones. The Legislature can override vetoes, if the bill's backers can win two-thirds majorities in both the Assembly and Senate. But that doesn't happen often, and in recent decades almost never.

Some significant measures ought to be to Newsom's liking: He has become more assertive in pushing his priorities in the Legislature — climate change last year, infrastructure and mental health this year.

Here are some of the noteworthy bills that CalMatters reporters tracked throughout this legislative session:

End state travel ban

Seven years after California prohibited publicly-funded travel to states with anti-LGBTQ laws, it may reverse course. SB 447 by Senate President Pro Tem Toni Atkins, a San Diego Democrat who is the first openly gay leader of the chamber, would repeal a travel ban that has proved largely ineffective, restricting Californians more than those it was intended to punish. In its place, the measure would create an advertising program to promote LGBTQ inclusion across the country.

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Why it matters

Prompted by North Carolina's then-highly controversial move to require people to use only bathrooms corresponding with their sex at birth, California's travel ban eventually grew to encompass two dozen states — including Texas, Florida and Arizona — that exclude transgender girls from high school sports, limit access to transgender health care and allow adoption agencies to discriminate against same-sex couples. Dropping the ban would be a major concession that California's advocacy has been a futile counterweight in a political climate increasingly hostile to LGBTQ people.

Decriminalize psychedelic drugs

What the bill would do

Senate Bill 58, by Sen. Scott Wiener, a San Francisco Democrat, would ensure that people are not arrested or penalized for using and possessing certain plant-based hallucinogens starting in 2025. The substances include psilocybin

and psilocin, the psychoactive ingredient in hallucinogenic mushrooms; mescaline (except peyote); and dimethyltryptamine, or DMT. A fourth substance, ibogaine, was scratched from the bill in a final round of amendments. This bill applies only to people 21 and older and does not legalize the sale of psychedelics.

The bill takes a more incremental approach for supervised medical use of psychedelics. It would require the state's health agency to form a working group to make recommendations for governing the future therapeutic use of these substances.

who supports it

The bill is sponsored by a veterans' group, Heroic Hearts Project. Combat veterans and retired first responders have testified in support of the bill, sharing their "transformational" experiences using psychedelics to help relieve suicidal thoughts and PTSD symptoms.

who is opposed

Registered opposition is largely made up of law enforcement groups. Mothers who have lost a child to an adverse reaction after they ingested hallucinogens have also testified about their concerns during hearings. They've pushed for the bill to include more safeguards, arguing that while these substances may promise benefits for some people, they also come with risks.

why it matters

If Gov. Newsom signs this bill, California would join Colorado and Oregon in decriminalizing psychedelics. The current movement to make these substances mainstream is one attempt to help alleviate the ballooning mental health crisis. Growing research portrays the drugs as a promising tool in helping people heal from various mental illnesses, including depression and PTSD. But evidence is still limited and no psychedelic treatment has yet been approved by the U.S. Food and Drug Administration.

Tax guns and ammo

What the bill will do

AB 28 by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, would impose an 11% excise tax on retailers and manufacturers for sales of guns or ammunition. Modeled on a similar federal levy for wildlife conservation, the tax could bring in an estimated $160 million annually for violence intervention programs, school safety improvements and law enforcement efforts to confiscate guns from people who are prohibited from owning them.

Who supports it

Facing a higher two-thirds threshold for approval, the measure received widespread backing from Democratic lawmakers who argue that it would provide an essential, steady stream of funding to further California's gun safety efforts. Gun control advocates, physicians and nurses groups, local elected officials and even some police departments also endorsed it.

Who is opposed

Gun rights groups contend the tax will unfairly burden lawful owners of firearms, particularly sports shooters and hunters who frequently buy ammunition, because businesses will simply pass the cost on to customers. They have suggested they will sue to stop it. Their complaint was echoed by Republicans and some Democrats who spoke

against the measure in the Legislature.

Why it matters

Lawmakers unsuccessfully pursued sales or excise taxes on guns and ammunition half a dozen times over the past decade, some of which never even got a hearing. Gabriel credited a changing political climate for finally pushing the policy through this session — including parents' anxiety over regular active shooter drills at schools and widespread anger over last year's U.S. Supreme Court ruling that tossed long-standing restrictions on carrying concealed weapons.

"The public is demanding this of us," Gabriel told CalMatters. "They are demanding that we have more solutions, that we protect their kids, to protect their communities."

Newsom, a vocal proponent of gun safety measures who has repeatedly discouraged legislators from pursuing new taxes in recent years, now must choose between two key governing principles.

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